

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 686

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO BRIBERY AND CORRUPTION; AMENDING SECTION 18-1359, IDAHO CODE, TO
REVISE A PROVISION REGARDING EMPLOYMENT OF RELATIVES AND TO PROVIDE AN
EXEMPTION REGARDING THE EMPLOYMENT OF CERTAIN RELATIVES; AND DECLARING
AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-1359, Idaho Code, be, and the same is hereby
amended to read as follows:

18-1359. USING PUBLIC POSITION FOR PERSONAL GAIN. (1) No public ser-
vant shall:

(a) Without the specific authorization of the governmental entity for
which he serves, use public funds or property to obtain a pecuniary ben-
efit for himself.

(b) Solicit, accept or receive a pecuniary benefit as payment for
services, advice, assistance or conduct customarily exercised in the
course of his official duties. This prohibition shall not include triv-
ial benefits not to exceed a value of fifty dollars (\$50.00) incidental
to personal, professional or business contacts and involving no sub-
stantial risk of undermining official impartiality.

(c) Use or disclose confidential information gained in the course of or
by reason of his official position or activities in any manner with the
intent to obtain a pecuniary benefit for himself or any other person or
entity in whose welfare he is interested or with the intent to harm the
governmental entity for which he serves.

(d) Be interested in any contract made by him in his official capacity,
or by any body or board of which he is a member, except as provided in
section 18-1361, Idaho Code.

(e) Appoint or vote for the appointment of any person related to him by
blood or marriage within the second degree to any clerkship, office, po-
sition, employment or duty, when the salary, wages, pay or compensation
of such appointee is to be paid out of public funds or fees of office,
or appoint or furnish employment to any person whose salary, wages, pay
or compensation is to be paid out of public funds or fees of office, and
who is related by either blood or marriage within the second degree to
any other public servant when such appointment is made on the agreement
or promise of such other public servant or any other public servant to
appoint or furnish employment to anyone so related to the public ser-
vant making or voting for such appointment. Any public servant who pays
out of any public funds under his control or who draws or authorizes the
drawing of any warrant or authority for the payment out of any public
fund of the salary, wages, pay, or compensation of any such ineligi-

ble person, knowing him to be ineligible, is guilty of a misdemeanor and shall be punished as provided in this chapter.

(f) Unless specifically authorized by another provision of law, commit any act prohibited of members of the legislature or any officer or employee of any branch of the state government by section 67-9230, Idaho Code, violations of which are subject to penalties as provided in section 67-9231, Idaho Code, which prohibition and penalties shall be deemed to extend to all public servants pursuant to the provisions of this section.

(2) No person related to any member of the legislature by blood or marriage within the second degree shall be appointed to any clerkship, office, position, employment or duty within the legislative branch of government or otherwise be employed by the legislative branch of government when the salary, wages, pay or compensation of such appointee or employee is to be paid out of public funds. The provisions of this subsection shall not apply to any person who participates in the legislative page program of the senate or the house of representatives.

(3) No person related to a mayor or member of a city council by blood or marriage within the second degree shall be appointed to any clerkship, office, position, employment or duty with the mayor's or city council's city when the salary, wages, pay or compensation of such appointee or employee is to be paid out of public funds.

(4) No person related to a county commissioner by blood or marriage within the second degree shall be appointed to any clerkship, office, position, employment or duty with the commissioner's county when the salary, wages, pay or compensation of such appointee or employee is to be paid out of public funds.

(5) (a) ~~An employee of a governmental entity holding a position prior to the election of a local government official,~~ who is related to a local government official within the second degree, shall be entitled to retain his or her position and receive general pay increases, step increases, cost of living increases, and/or other across-the-board increases in salary or merit increases, benefits and bonuses or promotions ~~if the employee:~~

(i) Held the position prior to the election of the local government official; or

(ii) Meets the requirements of subsection (8) of this section prior to a city's population exceeding ten thousand (10,000) persons.

(b) Nothing in this section shall be construed as creating any property rights in the position held by an employee subject to this section, and all authority in regard to disciplinary action, transfer, dismissal, demotion or termination shall continue to apply to the employee.

(6) The prohibitions contained within this section shall not include conduct defined by the provisions of section 74-403(4), Idaho Code.

(7) The prohibitions within this section and section 18-1356, Idaho Code, as it applies to part-time public servants, do not include those actions or conduct involving the public servant's business, profession or occupation and unrelated to the public servant's official conduct, and do not apply to a pecuniary benefit received in the normal course of a leg-

islator's business, profession or occupation and unrelated to any bill, legislation, proceeding or official transaction.

(8) (a) The prohibition of subsection (3) of this section shall not apply if all the following conditions are met:

(i) The city has a population of fewer than ten thousand (10,000) persons, based on the most recent decennial census;

(ii) The position to be filled requires specific education, training, or relevant experience related to the duties of the position, and the related individual meets those qualifications;

(iii) Public notice of the job opening has been made through means customarily used by the city for job postings, including posting to the city website, if applicable;

(iv) The position has been publicly posted for no fewer than forty-five (45) days prior to the proposed appointment or employment, and no qualified applicants have applied during the posting period;

(v) The city has made a good faith effort to identify and consider qualified applicants, including documented outreach and follow-up with applicants to determine availability and qualifications;

(vi) The city maintains a written record of:

1. All applications received;

2. The qualifications of each applicant;

3. The reasons for rejection of unqualified applicants; and

4. The rationale for the appointment or employment of the related individual;

(vii) The city council approves the appointment or employment at an open meeting, and the familial relationship is publicly disclosed prior to the vote;

(viii) The related, elected official does not serve as the supervisor, manager, or otherwise exercise direct authority over the work or employment conditions of the newly appointed or employed individual. The city council shall assign supervisory responsibilities to an unrelated employee or official who is not within the second degree of blood or marriage to the newly appointed or employed individual. Any performance evaluations, disciplinary actions, or decisions relating to compensation or advancement shall be made or reviewed by an unrelated supervisor or official and confirmed by the city council, with a written record maintained documenting the rationale for such actions; and

(ix) Any increase in compensation for a person appointed or employed pursuant to this subsection is limited to cost-of-living adjustments or other across-the-board increases provided to all employees. Such individual shall not be eligible for discretionary increases, bonuses, or promotions unless approved by the city council in an open meeting, with the rationale for such increase made part of the record. No person appointed or employed pursuant to this subsection shall receive any benefits beyond those uniformly offered to all similarly situated employees of the city.

1 (b) No position shall be created solely for the purpose of employing a
2 related individual, nor shall the provisions of this subsection be con-
3 strued to impair or limit the provisions of subsection (5) of this sec-
4 tion.

5 SECTION 2. An emergency existing therefor, which emergency is hereby
6 declared to exist, this act shall be in full force and effect on and after
7 July 1, 2026.